

Court No. - 40

Case :- WRIT - C No. - 19049 of 2018

Petitioner :- Virendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ravi Shankar Tripathi

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

The petitioner has not impleaded the concerned Electricity Department which is the Madhayanchal Vidyut Vitaran Nigam Limited through its Managing Director as well as the Executive Engineer.

Learned counsel for the petitioner is permitted to implead the said parties as respondent nos.4 and 5 respectively and serve a copy of the notice on Sri Kapil Dev Singh Rathore, who is counsel for the said respondents within two days.

Put up on Monday (28.05.2018).

Order Date :- 25.5.2018

R./

Court No. - 40

Case :- WRIT - C No. - 19049 of 2018

Petitioner :- Virendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ravi Shankar Tripathi

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

On the request of Sri Kapil Dev Singh Rathore, learned counsel for the respondents put up day after tomorrow.

Order Date :- 28.5.2018

R./

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Petitioner :- Virendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ravi Shankar Tripathi

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner and Sri Rathore for the respondent. This petition assails recovery of electricity dues.

The petitioner has nowhere pleaded any fact about the checking which was carried out on 23.08.2014 even though the date of the checking is specifically mentioned in the notice dated 20.01.2016 which is anenxure-4 to the writ petition. There is no explanation as to why the said fact has been omitted to be mentioned in the entire pleading.

Learned counsel for the respondent Sri Kapil Dev Singh Rathore has placed before the Court the photostat copy of the said checking report which indicates that even prior to the formal installation and energizing of the meter the petitioner had started running his flour mill with the aid of an unauthorized LT Cable and which fact was reported whereafter the petitioner deposited the amount for getting a regular connection on 30.08.2014. Learned counsel for the petitioner submits that this is a peculiar allegation made against the petitioner and as a matter of fact it is on account of a complaint of a faulty meter that was made later on that the respondents have now proceeded to level allegations of theft against the petitioner and are seeking to realize the amount of Rs.5,61,508/-.

If it is a case of theft as reported, in the absence of any challenge raised to the checking report dated 23.08.2014, then in that event if an first information report has been lodged the remedy of the petitioner is to seek compounding of the offence keeping in view the provisions of Section 152 of the Electricity Act, 2003. Secondly, if it is a matter of provisional assessment arising out of a theft then the remedy of the petitioner is to approach the concerned Executive Engineer for the rederessal of his grievances. We are therefore not inclined to entertain this writ petition in respect of a notice which was issued on 20.01.2016 and for which the remedy is available to the petitioner under the U.P. Electricity Supply Code, 2005. The writ petition is consigned to records with the said observations.

Order Date :- 30.5.2018

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